

bankruptcy notice on the debtor under sect. 4, subsect. (g) of the Bankruptcy Act, 1883.¹ But the trustee can serve a good bankruptcy notice without the concurrence of the *cestui que trust*.²

25. **Trustee if in possession votes for coroners.**—The trustee as the legal proprietor had originally the right of voting for *coroners* (i) (1); but by 58 G. 3, c. 95, sect. 2, it was transferred to the *cestui que trust* in possession. This act, however, * has since been repealed (a), and the [*235] matter now stands as it did before any legislative interference (b).

26. **Trustee's right to vote for a member of parliament.**—So the trustee was the person entitled at *common law* to vote for *members of parliament* (c). But by the 74th section of 6 & 7 Vict. c. 18 (d), it is enacted, that “no trustee of any lands or tenements shall in any case have a right to vote in any such election for or by reason of any trust estate therein, but that the *cestui que trust* in actual possession or in the receipt of the rents and profits thereof, *though he may receive the same through the hands of the trustee*, shall and may vote for the same notwithstanding such trust,” and by the 5th section of 30 & 31 Vict. c. 102, the right of voting is conferred upon persons who are seised at law or *in equity*, of lands or tenements of the yearly value of five pounds. [But a person entitled to a share of the proceeds of the sale of real estate held on a trust for conversion has not such an estate as will entitle him to vote (e).]

(i) *Burgess v. Wheate*, 1 Eden, 251.

(a) 7 & 8 Vict. c. 92.

(b) *Regina v. Day*, 2 Ell. & Bl.

859; see *post*, Ch. xxvi, s. 1.

(c) *Burgess v. Wheate*, 1 Eden, 251, *per* Lord Northington.

(d) As to the effect of certain intermediate statutes see 3d Ed. p. 270.

[(e) *Spencer v. Harrison*, 5 C. P. D. 97.]

(1) And Lord Northington added for “sheriffs” (*Burgess v. Wheate*, 1 Eden, 251) but the election of sheriffs had been transferred from the people to the Chancellor, Treasurer, and Judges, by 9 E. 2, st. 2, before the establishment of trusts.

¹ *Ex parte Dearle*, 14 Q. B. D. 184.

² *Ibid.*